

# Shiv Kumar Dubey v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 10 February 2025 · 2025:AHC-LKO:8290-DB · Writ-C No. 985 of 2025 · **Writ disposed of; petitioner directed to para 6.5 verification**

## HEADNOTE

A writ raising a billing dispute was disposed of with a direction that the petitioner approach opposite party no. 2, who shall verify the facts under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 and do the needful within one month. No merits finding was recorded on the bill.

## FACTUAL SUMMARY

The petitioner, Shiv Kumar Dubey, filed Writ-C No. 985 of 2025 in the Lucknow Bench of the Allahabad High Court against the State of Uttar Pradesh through the Additional Chief Secretary, Energy Department, and another opposite party. He raised a billing dispute. The Division Bench heard counsel for the petitioner and for the respondents. The order records no particulars of the bill, the period, the amount claimed, or any disconnection.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

billing dispute

#### HOLDING

Where the petitioner raises a billing dispute, he is to approach opposite party no. 2, who shall get the facts verified in terms of para 6.5 of the U.P. Electricity Supply Code, 2005 and do the needful within one month; the writ is disposed of without deciding the bill. ¶ 3

## PRINCIPLE TAGS

**billing-objection-to-executive-engineer-under-6.5** A writ raising a billing dispute was disposed of with a direction that the petitioner approach opposite party no. 2, who shall verify the facts under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 and do the needful within one month. No merits finding was recorded on the bill. ¶ 3

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — MERITS OF THE BILLING DISPUTE

Relegated to verification under para 6.5; no finding on the bill. ¶ 2-3